

## 24STCV05548 24STCV05548

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-09

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Case Number: 24STCV05548 Hearing Date: July 9, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV05548

ARBY

MASSIHI ENJILIAN vs ROMEL ALEXANDER RODRIGUEZ SALINAS, et al.

July

9, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANTS' MOTION TO STRIKE OR TAX COSTS.

RULING:

The Court grants the  
Motion as to taxing expert witness costs and otherwise denies it.

Therefore, the Court  
taxes expert costs in the sum of \$15,750.00, out of the total amount of \$33,725.69,  
and awards Plaintiff costs in the remaining amount of \$17,975.69.

I.  
BACKGROUND

The  
Court incorporates by reference the Background section of the Minutes entered  
on July 7, 2026.

On  
May 1, 2026, the Court filed a Judgment for \$258,218.76 in favor of Plaintiff.

On May 22, 2026, Defendant  
filed the Motion to Tax Costs, as follows:

1.  
Tax Plaintiff's claimed expert witness fees in the amount of \$15,750.00;
2.  
Tax Plaintiff's deposition costs to the extent included within the claimed  
\$2,839.10 attributable to the depositions of Tamera Rockholt, R.N., B.S.N.,  
that relate to the March 12, 2026 post-offer Volume II deposition;
3.  
Tax service of process costs relating to the appearance subpoena of Police  
Officer Patricia H. Ibarra in the amount of \$221.49;
4.  
Tax Plaintiff's miscellaneous "Other" costs relating to trial binders  
(\$1,718.54), policy limits searches (\$400.00), and observer fees relating to  
Plaintiff's independent medical examination (\$1,000.00), for a total of  
\$3,118.54; and
5.  
Tax any additional unsupported or nonrecoverable discretionary costs as

determined by the Court.

(Motion, 8:1-11.)

Plaintiff counterargues

that Defendant has the burden of proof, the New Trial Motion might result in recovery over the section 998 settlement offer to support expert costs, and the remaining items are statutorily recoverable.

II.

## LEGAL STANDARD

If items appear on their face to be proper, the verified memorandum of costs is prima facie evidence of their propriety, shifting the burden of proof to the attacking party. (Adams v. Ford

Motor Co. (2011) 199 Cal.App.4th 1475, 1486-1487; Benach v. County of L. A. (2007) 149 Cal.App.4th 836, 855; Nelson v. Anderson (1999) 72 Cal.App.4th

111, 131-132 [“trial court erred in requiring additional proof from” the party claiming costs, where the party attacking costs had the burden]; Santantonio v. Westinghouse Broad. Co. (1994) 25 Cal.App.4th 102, 116, 121 [after a prima facie showing based on verified cost memorandum, objecting party has the burden to prove costs should be disallowed]; Ladas v. Cal. State Auto.

Assn. (1993) 19 Cal.App.4th 761, 773; Rappenecker

v. Sea-Land Serv., Inc. (1979) 93 Cal.App.3d 256, 266. Where they do not appear regular on their face, the burden is on the claiming party. Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267. But see Acosta v. SI Corp. (2005) 129

Cal.App.4th 1370, 1380 [“if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.”]; Bach v. County of Butte (1989) 215 Cal.App.3d 294, 308 [“Only after such costs are challenged by a motion to tax do the parties need to justify their claims by submitting documentation of the costs they have incurred.”].)

If a statute expressly allows the particular item of costs and it appears proper on its face, then the burden is on the objecting party to show the costs are unreasonable or unnecessary. (Rozanova

v. Uribe (2021) 68 Cal.App.5th 392, 399; Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486 [“burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary.”].) Conversely, if the costs are not expressly allowed by statute, then the burden is on the party claiming the costs to show that the charges were reasonable and necessary. (Rozanova v. Uribe (2021) 68 Cal.App.5th 392, 399.)

“When the opposing party has rejected a settlement offer and fails to obtain a more favorable judgment, the trial court may, in its discretion, make an award of expert witness fees.” (Fish v. Guevara (1993) 12 Cal.App.4th 142, 148. Accord Michelson v. Camp (1999) 72 Cal.App.4th 955, 976.) Code of Civil Procedure Section 998 limits recoverable costs to those incurred from the time of the settlement offer, but costs as to expert witnesses contains no such limitation. (Bates v. Presbyterian Intercommunity Hosp., Inc. (2012) 204 Cal.App.4th 210, 222.) “[S]ection 998, subdivision (c), ... gives the trial court discretion to award a prevailing defendant all expert witness fees, whether incurred before or after the settlement offer was made.” (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1483.)

“Section 1033.5, subdivision (a) includes as allowable costs those involved in ‘(3) Taking, videotaping, and transcribing necessary depositions including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed, and travel expenses to attend depositions.’” (Gorman v. Tassajara Dev. Corp. (2009) 178 Cal.App.4th 44, 71-72.)

“If a specific cost item is not identified in either section 1033.5, subdivision (a), or subdivision (b), it may be awarded in the trial court’s discretion under section 1033.5, subdivision (c)(4), provided it satisfies the further requirement of section 1033.5, subdivision (c)(2), that it was reasonably necessary to the conduct of the litigation.” (Seever v. Copley Press, Inc. (2006) 141 Cal.App.4th 1550, 1558, disapproved on other grounds by Segal v. ASICS Am. Corp. (2022) 12 Cal.5th 651, 667. Accord, Gibson v. Bobroff (1996) 49 Cal.App.4th 1202, 1207; Michell v. Olick (1996) 49 Cal.App.4th 1194, 1200.)

““The trial court’s exercise of discretion in granting or denying a motion to tax costs will not be disturbed if substantial evidence supports its decision.”” (Chaaban v. Wet Seal, Inc. (2012) 203 Cal.App.4th 49, 52.)

III.

ANALYSIS

Defendant contests expert

witness fees unsupported by section 998, post-settlement-offer deposition costs, subpoenaed witness fees associated with nonattendance at trial, and other costs not supported by evidence as being recoverable or reasonably incurred.

Plaintiff counterargues  
points including these:

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Defendants' failed to provide a competent  
declaration disproving costs.

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There is no requirement for moving parties  
to evidence costs.

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Section 998 expert costs would be  
recoverable if the Court grants a large additur sum making the award more than  
Defendant's settlement offer of \$350,000.00.

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All of the costs were incurred before the  
served section 998 offer.

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The Court may award other cost items where  
they are not expressly listed in the costs statute.

First, as to costs based  
upon section 998, Plaintiff failed to recover more than the jury's awarded  
amount, and a \$30,000.00 additur added to the Judgment award, still leaves the recovery  
inadequate to exceed the settlement offer of \$350,000.00.

Regarding costs for the  
appearance subpoena of Police Officer in the amount of \$221.49, trial  
attendance was not required since the expense was reasonably necessary to  
prepare for proving liability if needed. Analogously, awardable costs of  
experts include efforts for preparation of a case for trial even if they did  
not testify. (Santantonio v. Westinghouse Broad. Co. (1994) 25  
Cal.App.4th 102, 124.) Similarly, costs for exhibits prepared but not used at trial,

nonetheless are recoverable in the court's discretion, when reasonably necessary to litigation conduct and reasonable in amount. (Segal v. ASICS Am. Corp. (2022) 12 Cal.5th 651, 667.)

As for miscellaneous "Other" costs, they are recoverable and not expressly prohibited by statute, and the Declaration of Nicholas Brauns, filed in support of the Motion, fails to meet the burden to disprove them. Instead, that Declaration describes the settlement offer, trial outcomes, cost memorandum descriptions, and witness testimony, and also adds assertions of law regarding required documentation.

IV.

#### CONCLUSION

The Motion is granted as to section 998 costs, and is otherwise denied.